

HOUSE No. 5579

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis and Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Stockbridge to modify Fire Department employment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>4/29/2026</i>

HOUSE No. 5579

By Representative Davis of Great Barrington and Senator Mark, a joint petition (accompanied by bill, House, No. 5579) of Leigh Davis (by vote of the town) that the town of Stockbridge be authorized to modify employment for the fire department of said town. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Stockbridge to modify Fire Department employment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, call firefighters,
2 volunteer firefighters, and fire engineers for the Town of Stockbridge who would be subject to
3 mandatory retirement on the last day of the month in which they turn 65 years old, and, if a
4 member of the retirement system, are retired for superannuation, may serve in such position until
5 the age of 70, or until the date of retirement or non-reappointment, whichever occurs first;
6 provided, however that no deductions from regular compensation shall be made under chapter 32
7 of the General Laws subsequent to reaching the age of 65 in connection with service to the Town
8 for retirement or pension purposes; and provided that the employee is mentally and physically
9 capable of performing the duties of the position. The Town may, at the employee's own expense,
10 require that the employees be examined by an impartial physician acceptable to the town.

11 SECTION 2. This Act shall take effect upon its passage.